

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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CRYSTAL CASTILLO; GENETRIX ISAMBERT;
ANA LOPEZ; ERICA POLONIO; SHAKIRA POLONIO,

Summons

Plaintiffs.

Index No.:

-against-

The Basis of Venue is:
Location of Incident

CITY OF NEW YORK; HAMZE ELREDA
JOHN AND JANE DOE ONE THROUGH TWENTY,

Plaintiffs designate Bronx
County as the place of trial.

Defendants.

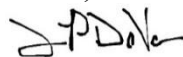
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TO THE ABOVE NAMED DEFENDANTS:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 27, 2021

Yours, etc.



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Defendants' Addresses:

CITY OF NEW YORK, Corporation Counsel; 100 Church Street, NY, NY 10007
HAMZE ELREDA; 46 Precinct, 2120 Ryer Avenue, Bronx, NY 10457
JOHN AND JANE DOE ONE THROUGH TWENTY, 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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CRYSTAL CASTILLO; GENETRIX ISAMBERT;
ANA LOPEZ; ERICA POLONIO; SHAKIRA POLONIO,

Plaintiffs.

Index No.:

-against-

VERIFIED COMPLAINT:

CITY OF NEW YORK; HAMZE ELREDA
JOHN AND JANE DOE ONE THROUGH TWENTY,

**JURY TRIAL
DEMANDED**

Defendants.

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Plaintiffs CRYSTAL CASTILLO; GENETRIX ISAMBERT; ANA LOPEZ; ERICA POLONIO;
and SHAKIRA POLONIO by their attorneys, DEVERNA LAW, as and for their Verified
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiffs' claims arise out of a May 31, 2020 incident, in which defendants acting under color of state law, unlawfully used excessive force on Plaintiffs CRYSTAL CASTILLO; GENETRIX ISAMBERT; ANA LOPEZ; ERICA POLONIO; and SHAKIRA POLONIO, while other defendants unlawfully failed to intervene in that use of excessive force. As a direct and proximate cause of such excessive force, Plaintiffs CRYSTAL CASTILLO; GENETRIX ISAMBERT; ANA LOPEZ; ERICA POLONIO; and SHAKIRA POLONIO suffered serious and emotional injuries. Further defendants acting under color of state law unlawfully arrested and detained Plaintiffs GENETRIX ISAMBERT; ANA LOPEZ; and

- ERICA POLONIO, while other defendants unlawfully failed to intervene in that unlawful arrest. As a direct and proximate cause of the unlawful arrest and detainment, Plaintiffs GENETRIX ISAMBERT; ANA LOPEZ; and ERICA POLONIO were detained within the New York City Police Department within the jurisdictional confines of Bronx County, New York and were deprived of their liberty for several hours and suffered serious and emotional injuries. Plaintiffs GENETRIX ISAMBERT; ANA LOPEZ; and ERICA POLONIO were maliciously prosecuted, until their cases were later resolved in their favor.
3. Plaintiffs in furtherance of their causes of action, pursuant to New York State law filed a Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and in accordance with New York State law and jurisprudence.
 4. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims or otherwise resolved them.
 5. Plaintiffs have complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
 6. This action and all associated claims have been timely brought within the applicable statutes of limitations.
 7. Each Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
 8. Each Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

9. At all times here relevant, Plaintiff CRYSTAL CASTILLO was a resident of the state of New York.
10. At all times here relevant, Plaintiff GENETRIX ISAMBERT was a resident of the state of New York.
11. At all times here relevant, Plaintiff ANA LOPEZ was a resident of the state of New York.
12. At all times here relevant, Plaintiff ERICA POLONIO was a resident of the state of New York.
13. At all times here relevant, Plaintiff SHAKIRA POLONIO was a resident of the state of New York.
14. The Defendant City of New York (“CITY”) was a municipal corporation organized under the laws of the State of New York.
15. At all times relevant hereto, Defendant CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
16. In addition, at all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
17. Defendant HAMZE ELREDA (“ELREDA”), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant ELREDA was, at the time relevant

herein, a police officer in the 46th Precinct. Defendant ELREDA is sued in his individual and official capacities.

18. At all times relevant Defendants JOHN AND JANE DOE ONE THROUGH TWENTY (“JOHN AND JANE DOE 1 THROUGH 20”) were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the real names and/or shield number of Defendants John and Jane Doe 1 through 20, but such information is believed to be in the possession of the defendants. Defendants John and Jane Doe 1 through 20 are sued in their individual and official capacities.
19. At all times, the mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

21. On May 31, 2020, at approximately 3:30AM, Plaintiffs CRYSTAL CASTILLO; GENETRIX ISAMBERT; ANA LOPEZ; ERICA POLONIO; and SHAKIRA POLONIO

were lawfully present in the vicinity of 1835 Phelan Place, Bronx, NY 10453, the residence of GENETRIX ISAMBERT.

22. Though Plaintiffs were not committing any offense or violation of the law, Defendant ELREDA and Defendant JOHN DOE 1 arrived to the vicinity of 1835 Phelan Place and began interacting with individuals present.
23. During this time, Defendant ELREDA did without provocation or necessity threatened to punch Plaintiff GENETRIX ISAMBERT stating he wanted to knock her teeth out, after which he did rip out her hair extension, and pushed her face.
24. During this time, Defendant ELREDA, began swinging his expandable baton violently striking Plaintiff SHAKIRA POLONIO and other individuals, and nearly striking several others screaming, “lets go, lets go,” causing Plaintiff SHAKIRA POLONIO significant injuries, the extent of which are currently unknown but which did require multiple stitches to the head.
25. During this time, Defendant ELREDA’s body camera did fall to the ground.
26. During this time, Defendants, including JOHN DOE 1 did without provocation or necessity utilize Oleoresin Capsicum (“OC”) spray in an unsafe manner upon several individuals including Plaintiffs CRYSTAL CASTILLO; GENETRIX ISAMBERT; and ANA LOPEZ, causing significant injuries to the body, including to the eyes the extent of which are curtly unknown.
27. During this time, after using the OC spray, Defendant ELREDA pushed and shoved Plaintiff ANA LOPEZ.

28. During this time, and while tending to an injured individual, Plaintiff ERICA POLONIO did observe Defendant ELREDA's body camera on the ground, picked it up, and immediately handed it to Defendant ELREDA.
29. During this time, Defendant ELREDA's did grab and push Plaintiff GENETRIX ISAMBERT, did threaten her with the expandable baton, and did strike GENETRIX ISAMBERT in the back multiple times.
30. During this time, respondent POLICE OFFICER HAMZE ELREDA did run at and strike Plaintiff GENETRIX ISAMBERT in the chest causing her breast augmentation to rupture and dislodge which requires Plaintiff GENETRIX ISAMBERT to undergo a surgical procedure to be performed under general anesthesia, and did cause other injuries the extent of which are currently unknown.
31. During this time, Defendant ELREDA thereafter swung his expandable baton multiple times violently striking Plaintiff ERICA POLONIO, causing her significant injuries, the extent of which are currently unknown but which did include multiple staples and stitches to the head.
32. During this time, Defendant Officers did violently grab upon the arm of Plaintiff CRYSTAL CASTILLO causing her to fall to the ground and sustain injury, the extent of which is still unknown.
33. During this time, Defendant Officers did enter Plaintiff GENETRIX ISAMBERT'S home without a warrant or exigent circumstances and falsely arrested GENETRIX ISAMBERT, and during the unlawful arrest did use unnecessary force in effecting the arrest, including hitting her body against the bathroom door.

34. Plaintiff GENETRIX ISAMBERT was arrested without probable cause and falsely charged with Resisting Arrest and other charges (B20616012, docket number CR-013460-20BX).
35. Plaintiff GENETRIX ISAMBERT was handcuffed in an unnecessarily tight manner causing pain, discomfort, redness, and bruising. Plaintiff GENETRIX ISAMBERT was unlawfully detained for several hours, where she was subjected to scorn, harassment, and threat. Plaintiff had to return to Court before the charges against her were resolved in her favor.
36. Plaintiff ANA LOPEZ was arrested without probable cause and falsely charged with Disorderly Conduct (NYPD DAT arrest number 4437235863).
37. Plaintiff ANA LOPEZ was handcuffed in an unnecessarily tight manner causing pain, discomfort, redness, scratches, and bruising. Plaintiff ANA LOPEZ was unlawfully detained against her will for several hours, where she was subjected to scorn, harassment, and threat. Plaintiff had to return to Court before the charges against her were resolved in her favor.
38. Plaintiff ERICA POLONIO was arrested without probable cause and falsely charged with Assault in the Second Degree and other charges (NYPD arrest number B20616017).
39. Plaintiff ERICA POLONIO was ankle shackled and handcuffed in an unnecessarily in an unnecessarily tight manner causing pain, discomfort, redness, and bruising. Plaintiff ERICA POLONIO was unlawfully detained against her will for several hours, where she was subjected to scorn, harassment, and threat. Plaintiff ERICA POLONIO had to return to Court multiple times before the charges against her were resolved in her favor.
40. The Defendants did not observe Plaintiffs committing any crime or violating any law or local ordinance.

41. Defendants did not have probable cause or reasonable suspicion to detain or arrest Plaintiffs.
42. Plaintiffs did not resist arrest.
43. Based on information and belief, a Defendant supervisor, was present on the scene and did not stop the unlawful arrest of Plaintiffs.
44. Several Defendants, who did not participate in the incident, but were otherwise present and observed the violation of Plaintiffs' constitutional rights failed to intercede on Plaintiffs' behalf despite having the time and ability to do so.
45. Defendants' actions did cause Plaintiffs personal, physical, and emotional injuries, the extent of which is still unknown.
46. The Defendants' actions were so egregious that video of the incident was posted to social media which included footage of the Plaintiffs which has caused Plaintiffs significant embarrassment and alarm.
47. Defendants later searched Plaintiffs GENETRIX ISAMBERT; ANA LOPEZ; and ERICA POLONIO without their authority or permission.
48. Defendants placed Plaintiffs GENETRIX ISAMBERT; ANA LOPEZ; and ERICA POLONIO into an NYPD vehicle and drove to the 46th Precinct
49. At the 46th Precinct, Plaintiffs GENETRIX ISAMBERT; ANA LOPEZ; and ERICA POLONIO were subjected to an intrusive search of their persons during which officers put their hands near intimate parts of Plaintiffs' bodies.
50. Defendants, including Defendant ELREDA, prepared false sworn affidavits and false police reports relating to Plaintiffs' arrests, and transmitted false information to individuals in the Bronx County District Attorney's Office.

51. Defendants, including Defendant ELREDA, repeatedly falsified information relating to the facts and circumstances surrounding Plaintiffs' arrests, and transmitted false information to individuals in the Bronx County District Attorney's Office.
52. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiffs and violate their civil rights.
53. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene in the actions of his fellow officers when they observed them arresting Plaintiffs without probable cause or using an excessive amount of force.
54. At all times relevant hereto, Defendants were involved in the decision to violate Plaintiffs' civil rights, including utilizing an excessive amount of force, and falsely arresting Plaintiffs, and failed to intervene in the actions of their fellow officers.
55. Based on information and belief, Defendant CITY, through the NYPD the Bronx District Attorney's Office, and through other departments and agencies, was on notice of Defendant ELREDA's propensity toward violence, especially with regard to his treatment of women, including utilizing excessive and unnecessary force yet failed to take appropriate action which resulted in the violation of Plaintiffs' constitutional rights.
56. Based on information and belief, Defendant CITY, was on notice that Constitutional Violations were endemic at the 46th Precinct. Indeed, Pro Publica reports that since 1999, at the 46th Precinct, there have been 118 officers with complaints, there have been 286 complaints, and 825 allegations, with over 200 substantiated allegations. Many of these allegations are for use of force. See https://projects.propublica.org/nypd-ccrb/commands/046-pct?direction=asc&sort=year_received. The measures the City took

in addressing each allegation and the collection of allegations at this precinct were woefully inadequate sending a signal that such violations were not only tolerable in the NYPD and at the 46th Precinct in particular, amounting to a policy of rough and excessive policing. This policy resulted in the violation of Plaintiffs' constitutional rights.

57. The City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. From reform-minded Commissioner Patrick Murphy to the *Mollen* Commission twenty-five years later, the City has been repeatedly cautioned that a systemic tolerance for brutality flourishes throughout the NYPD. Indeed, years before said violation was perpetrated upon Plaintiff, the *Mollen* Commission report noted, "This tolerance, or willful blindness, extends to supervisors as well. This is because many supervisors share the perception that nothing is really wrong with a bit of unnecessary force and because they believe that this is the only way to fight crime today." *Mollen* Comm. Report, at 49; The City of New York Commission to Combat Police Corruption, *passim*.
58. Plaintiffs assert that the Defendants who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar conduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission of such constitutionally violent behavior has become tantamount to an official policy or custom within the NYPD, and the City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the Civil Rights of those who may come into contact with police officers.

59. The individually named Defendants herein, as well as other officers serving in the employee of the NYPD, and the City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by the Constitution of the United States, in addition to the laws and Constitution of the State of New York, or without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, The City of New York and their respective policymakers and supervisors
60. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption with the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers including those who are implicated via some incontrovertible form of evidence.
61. On March 18, 2018, *The New York Times* published an explosive article entitled *Promotions, Not Punishments For Officers Accused of Lying*, written by Joseph Goldstein. Mr. Goldstein shines the light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type of evidence, an alarmingly small percentage of officers' misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires

evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's reluctance to investigate or discipline officers who lie and posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusation relating to the officers intentionally false statements, with some allegations coming from federal and state judges.

62. On September 12th 2019, *The New York Times* published another article by Joseph Goldstein entitled *Officers Said They Smelled Pot, The Judge Called Them Liars*. Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics what has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judge to credit the line officers, and the increasing rates of occurrence
63. On April 24 2019, *The New York Times* published an article entitled *Detectives Lies Sent Three People to Prison, Prosecutors Charged* by Sean Piccolo, detailing the lies of NYPD second-grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Detective Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Detective Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one year
64. Other articles include: (i) *Testifying by Police a Stubborn Problem* by Joseph Goldstein, *The New York Times*, March 18th 2018; (ii) *New York Detective Charged With Faking*

- Lineup Results* by Joseph Goldstein, *The New York Times*, February 17th 2018; (iii) *He Excelled as a Detective, Until Prosecutor Stop Believing Him* by Joseph Goldstein, *The New York Times*, October 17th 2017; (iv) *Review Board Notes Rise in the New York Police Officers False Statement* by David Goodman, *The New York Times*, May 14th 2015; (v) *In Brooklyn Gun Cases Suspicion Turns to the Police* by Stephanie Clifford, *The New York Times*, December 11th 2014 (vi) *Detective is Found Guilty of Planting Drugs*, by Tim Stelloh, *The New York Times* November 1, 2014; (vii) *The Drugs? They Came From The Police*, by Jim Dwyer, *The New York Times*, October 13, 2011.
65. The NYPD has a long-standing and ignominious record of failing to discipline its officers or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article entitled *2495 Reports of Police Bias*. One was deemed valid by the NYPD worried that within the last five years almost 2,500 several individuals have filed formal complaint with the NYPD alleging that an officer acted with biased towards them, would not one single being substantiated by the NYPD such a finding is playing the incredible and obviously the result of a deliberately poor or non-existent investigatory protocol the report commitment to combat the prejudices and the bias is exhibited by many of his officers.
66. Defendant CITY employees had a history of entering potentially volatile situations ill-trained, choosing not to deescalate but instead escalate the situations leading to violence and the infringement of citizens' constitutional rights. See McLeod v Llano 17-CV-06062(ARR). Defendant CITY's aware that similar situations were common failed to introduce de-escalation training sooner thus leading to a de-facto policy of escalation with contributed to the violation of Plaintiffs' constitutional rights.

67. On June 16 and June 17, 2020, Attorney General Letitia James co-hosted a panel along with former US Attorney General Loretta Lynch and Barry Friedman in which 48 individuals, including, Jahmel Leach and Dounya Zayer, discussed the tactics utilized by the NYPD during the Spring/Summer 2020 protests, which included accounts of broken bones from baton strikes, agony from pepper spray and hours and hours in a holding cell. The CITY's continued tolerance and/or encouragement of such a reaction amounted to a de-facto policy of abuse being tolerated against all individuals whom the NYPD confronted thus contributing to the violation of Plaintiffs constitutional rights.
68. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs being subjected to excessive force and arrest without probable cause
69. Upon information and belief, the NYPD, the city of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
70. Defendants' actions, pursuant to plaintiffs' underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiffs' civil rights that the tacit approval by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the right of any individuals who may come into contact with defendants, should be inferred, because such makers deprivations of constitutionally protected rights could not and would not occur without the tacit approval

or deliberate indifference regarding the commission of such violations by the policymakers were supervisors of the NYPD, and city of New York.

71. Upon information and belief further details and facts relating to the unlawful policies customs or patterns and practices of the NYPD, the City of New York and their respective policymakers supervisors police officers or employees, will become known after the completion of Discovery, as such information is presently within the exclusive possession of defendants, the NYPD, the Bronx District Attorney's Office, and the City of New York
72. Upon information and belief, the personal files, records and disciplinary histories of the officers Defendants will reveal a history of constitutional violations indicative of Defendant City's, knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or poor employment in general, and that the probability of the individually named defendant committed similar violations in the future was extremely high.
73. Upon information and belief said personnel files records and disciplinary histories will conclusively show that the city, and the NYPD were fully aware Defendant passed constitutional violations, unacceptably high probability for the reoccurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as Law Enforcement Officers, or for employment in general, and not the NYPD, and the City of New York to engage in any preventative or corrective action in the likelihood of recurrence for such violations, which is tantamount to the city of tacit approval of such misconduct or the city's deliberate indifference towards civil rights of those who may interact with employees including Plaintiffs

74. As a direct and proximate result of the acts of Defendants, Plaintiffs suffered the following injuries and damages: violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION OF CRYSTAL CASTILLO

Assault and Battery Under
New York State Law

75. The above paragraphs are here incorporated by reference as though fully set forth.
76. Defendants made Plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
77. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
78. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
79. As a direct and proximate result of this breach, Plaintiff CRYSTAL CASTILLO sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
80. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION OF CRYSTAL CASTILLO

Excessive Force Under
42 U.S.C. § 1983

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. The defendants, including Defendant ELREDA violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION OF CRYSTAL CASTILLO

Failure to Intervene Under
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth.
85. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
87. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION OF CRYSTAL CASTILLO

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

88. The above paragraphs are here incorporated by reference as though fully set forth.
89. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

90. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION OF CRYSTAL CASTILLO

Negligent Hiring, Retention and Supervision Under
New York State Law

92. The above paragraphs are here incorporated by reference as though fully set forth.
93. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
94. Defendant City breached that duty of care.
95. Defendant City placed defendants in a position where they could inflict foreseeable harm.
96. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
97. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
99. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION OF CRYSTAL CASTILLO

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Individual Defendants

100. The above paragraphs are here incorporated by reference as though fully set forth.

101. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
102. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
103. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
104. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with defendant City's employees.
105. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to his display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
106. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
107. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:

- a) To be free from excessive force;
 - b) Not to have summary punishment imposed upon her; and
 - c) To receive equal protection under the law.
108. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

FIRST CAUSE OF ACTION OF GENETRIX ISAMBERT

Assault and Battery Under
New York State Law

109. The above paragraphs are here incorporated by reference as though fully set forth.
110. Defendants made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
111. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
113. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
114. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION OF GENETRIX ISAMBERT

Excessive Force Under
42 U.S.C. § 1983

115. The above paragraphs are here incorporated by reference as though fully set forth.
116. The defendants, including Defendant ELREDA violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION OF GENETRIX ISAMBERT

Unlawful Stop and Search Under
New York State Law

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. Defendants violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped and searched Plaintiff without reasonable suspicion.
120. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
122. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Unlawful Stop and Search Under
42 U.S.C. § 1983 Against Individual Defendants

123. The above paragraphs are here incorporated by reference as though fully set forth.

124. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
125. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
127. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION OF GENETRIX ISAMBERT

False Arrest and False Imprisonment Under
New York State Law

128. The above paragraphs are here incorporated by reference as though fully set forth.
129. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
130. Plaintiff was conscious of her confinement.
131. Plaintiff did not consent to her confinement.
132. Plaintiff's arrest and false imprisonment was not otherwise privileged.
133. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

135. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION OF GENETRIX ISAMBERT

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

136. The above paragraphs are here incorporated by reference as though fully set forth.
137. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
138. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
139. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
140. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
141. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
143. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Malicious Prosecution Under
New York State Law

144. The above paragraphs are here incorporated by reference as though fully set forth.

145. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of her constitutional right to be free from malicious prosecution under Common Law, the Laws of the State of New York and the New York Constitution.
146. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused her to be prosecuted.
147. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
148. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
149. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
150. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Malicious Prosecution Under
42 U.S.C. §1983 Against Individual Defendants

151. The above paragraphs are here incorporated by reference as though fully set forth.
152. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of her constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
153. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused her to be prosecuted.

154. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
155. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
157. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Malicious Abuse of Process Under
New York State Law

158. The above paragraphs are here incorporated by reference as though fully set forth.
159. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
160. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
161. Defendant intended to inflict substantial harm upon Plaintiff.
162. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
163. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

164. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

165. The above paragraphs are here incorporated by reference as though fully set forth.
166. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
167. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
168. Defendant intended to inflict substantial harm upon Plaintiff.
169. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
170. Defendant's actions deprived plaintiff of her constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
171. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Failure to Intervene Under
New York State Law

172. The above paragraphs are here incorporated by reference as though fully set forth.
173. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

174. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
175. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION OF OF GENETRIX ISAMBERT

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

176. The above paragraphs are here incorporated by reference as though fully set forth.
177. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
178. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
179. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Negligent Hiring, Retention and Supervision Under
New York State Law

180. The above paragraphs are here incorporated by reference as though fully set forth.
181. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
182. Defendant City breached that duty of care.
183. Defendant City placed defendants in a position where they could inflict foreseeable harm.

184. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
185. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
186. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
187. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION OF GENETRIX ISAMBERT

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Individual Defendants

188. The above paragraphs are here incorporated by reference as though fully set forth.
189. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
190. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
191. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
192. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's

deliberate indifference towards the rights of those who may come into contact with defendant City's employees.

193. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to his display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
194. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
195. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United stated pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- d) Not to be deprived of liberty without due process of law;
 - e) To be free from seizure and arrest not based upon probable cause;
 - f) To be free from excessive force;
 - g) Not to have summary punishment imposed upon her; and
 - h) To receive equal protection under the law.
196. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

FIRST CAUSE OF ACTION OF ANA LOPEZ

Assault and Battery Under
New York State Law

197. The above paragraphs are here incorporated by reference as though fully set forth.

198. Defendants made Plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
199. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
200. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
201. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
202. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION OF ANA LOPEZ

Excessive Force Under
42 U.S.C. § 1983

203. The above paragraphs are here incorporated by reference as though fully set forth.
204. The defendants, including Defendant ELREDA violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
205. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION OF ANA LOPEZ

Unlawful Stop and Search Under
New York State Law

206. The above paragraphs are here incorporated by reference as though fully set forth.

207. Defendants violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped and searched Plaintiff without reasonable suspicion.
208. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
209. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
210. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION OF ANA LOPEZ

Unlawful Stop and Search Under
42 U.S.C. § 1983 Against Individual Defendants

211. The above paragraphs are here incorporated by reference as though fully set forth.
212. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
213. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
214. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
215. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION OF ANA LOPEZ

False Arrest and False Imprisonment Under
New York State Law

- 216. The above paragraphs are here incorporated by reference as though fully set forth.
- 217. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
- 218. Plaintiff was conscious of her confinement.
- 219. Plaintiff did not consent to her confinement.
- 220. Plaintiff's arrest and false imprisonment was not otherwise privileged.
- 221. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
- 222. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
- 223. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION OF ANA LOPEZ

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

- 224. The above paragraphs are here incorporated by reference as though fully set forth.
- 225. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
- 226. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
- 227. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

228. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
229. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
230. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
231. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION OF ANA LOPEZ

Malicious Prosecution Under
New York State Law

232. The above paragraphs are here incorporated by reference as though fully set forth.
233. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of her constitutional right to be free from malicious prosecution under Common Law, the Laws of the State of New York and the New York Constitution.
234. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused her to be prosecuted.
235. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
236. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

237. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

238. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION OF ANA LOPEZ

Malicious Prosecution Under
42 U.S.C. §1983 Against Individual Defendants

239. The above paragraphs are here incorporated by reference as though fully set forth.

240. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of her constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

241. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused her to be prosecuted.

242. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.

243. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

244. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

245. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION OF ANA LOPEZ

Malicious Abuse of Process Under
New York State Law

246. The above paragraphs are here incorporated by reference as though fully set forth.
247. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
248. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
249. Defendant intended to inflict substantial harm upon Plaintiff.
250. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
251. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
252. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION OF ANA LOPEZ

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

253. The above paragraphs are here incorporated by reference as though fully set forth.
254. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
255. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
256. Defendant intended to inflict substantial harm upon Plaintiff.

257. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
258. Defendant's actions deprived plaintiff of her constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
259. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION OF ANA LOPEZ

Failure to Intervene Under
New York State Law

260. The above paragraphs are here incorporated by reference as though fully set forth.
261. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
262. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
263. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION OF ANA LOPEZ

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

264. The above paragraphs are here incorporated by reference as though fully set forth.
265. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

266. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

267. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION OF ANA LOPEZ

Negligent Hiring, Retention and Supervision Under
New York State Law

268. The above paragraphs are here incorporated by reference as though fully set forth.

269. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

270. Defendant City breached that duty of care.

271. Defendant City placed defendants in a position where they could inflict foreseeable harm.

272. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

273. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

274. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

275. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION OF ANA LOPEZ

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Individual Defendants

276. The above paragraphs are here incorporated by reference as though fully set forth.

277. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
278. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
279. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
280. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with defendant City's employees.
281. Defendant City's employees engaged in such a egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to her display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
282. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
283. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:

- i) Not to be deprived of liberty without due process of law;
 - j) To be free from seizure and arrest not based upon probable cause;
 - k) To be free from excessive force;
 - l) Not to have summary punishment imposed upon her; and
 - m) To receive equal protection under the law.
284. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

FIRST CAUSE OF ACTION OF ERICA POLONIO

Assault and Battery Under
New York State Law

285. The above paragraphs are here incorporated by reference as though fully set forth.
286. Defendants made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
287. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
288. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
289. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
290. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION OF ERICA POLONIO

Excessive Force Under
42 U.S.C. § 1983

291. The above paragraphs are here incorporated by reference as though fully set forth.
292. The defendants, including Defendant ELREDA violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
293. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION OF ERICA POLONIO

Unlawful Stop and Search Under
New York State Law

294. The above paragraphs are here incorporated by reference as though fully set forth.
295. Defendants violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped and searched Plaintiff without reasonable suspicion.
296. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
297. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
298. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION OF ERICA POLONIO

Unlawful Stop and Search Under
42 U.S.C. § 1983 Against Individual Defendants

299. The above paragraphs are here incorporated by reference as though fully set forth.

300. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
301. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
302. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
303. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION OF ERICA POLONIO

False Arrest and False Imprisonment Under
New York State Law

304. The above paragraphs are here incorporated by reference as though fully set forth.
305. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
306. Plaintiff was conscious of her confinement.
307. Plaintiff did not consent to her confinement.
308. Plaintiff's arrest and false imprisonment was not otherwise privileged.
309. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
310. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

311. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION OF ERICA POLONIO

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

312. The above paragraphs are here incorporated by reference as though fully set forth.

313. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.

314. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

315. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

316. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

317. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

318. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

319. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION OF ERICA POLONIO

Malicious Prosecution Under
New York State Law

320. The above paragraphs are here incorporated by reference as though fully set forth.

321. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of her constitutional right to be free from malicious prosecution under Common Law, the Laws of the State of New York and the New York Constitution.
322. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused her to be prosecuted.
323. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
324. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
325. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
326. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION OF ERICA POLONIO

Malicious Prosecution Under
42 U.S.C. §1983 Against Individual Defendants

327. The above paragraphs are here incorporated by reference as though fully set forth.
328. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of her constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
329. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused her to be prosecuted.

330. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
331. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
332. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
333. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION OF ERICA POLONIO

Malicious Abuse of Process Under
New York State Law

334. The above paragraphs are here incorporated by reference as though fully set forth.
335. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
336. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
337. Defendant intended to inflict substantial harm upon Plaintiff.
338. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
339. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

340. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION OF ERICA POLONIO

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

341. The above paragraphs are here incorporated by reference as though fully set forth.

342. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

343. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

344. Defendant intended to inflict substantial harm upon Plaintiff.

345. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

346. Defendant's actions deprived plaintiff of her constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.

347. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION OF OF ERICA POLONIO

Failure to Intervene
Under New York State Law

348. The above paragraphs are here incorporated by reference as though fully set forth.

349. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

350. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

351. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION OF ERICA POLONIO

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

352. The above paragraphs are here incorporated by reference as though fully set forth.

353. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

354. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

355. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION OF ERICA POLONIO

Negligent Hiring, Retention and Supervision Under
New York State Law

356. The above paragraphs are here incorporated by reference as though fully set forth.

357. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

358. Defendant City breached that duty of care.

359. Defendant City placed defendants in a position where they could inflict foreseeable harm.

360. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
361. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
362. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
363. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION OF ERICA POLONIO

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Individual Defendants

364. The above paragraphs are here incorporated by reference as though fully set forth.
365. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
366. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
367. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
368. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's

deliberate indifference towards the rights of those who may come into contact with defendant City's employees.

369. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to his display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.

370. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.

371. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:

- n) Not to be deprived of liberty without due process of law;
- o) To be free from seizure and arrest not based upon probable cause;
- p) To be free from excessive force;
- q) Not to have summary punishment imposed upon her; and
- r) To receive equal protection under the law.

372. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

FIRST CAUSE OF ACTION OF SHAKIRA POLONIO

Assault and Battery Under
New York State Law

373. The above paragraphs are here incorporated by reference as though fully set forth.

374. Defendants made Plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
375. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
376. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
377. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
378. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION OF SHAKIRA POLONIO

Excessive Force Under
42 U.S.C. § 1983

379. The above paragraphs are here incorporated by reference as though fully set forth.
380. The defendants, including Defendant ELREDA violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
381. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION OF SHAKIRA POLONIO

Failure to Intervene Under
New York State Law

382. The above paragraphs are here incorporated by reference as though fully set forth.

383. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
384. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
385. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION OF SHAKIRA POLONIO

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

386. The above paragraphs are here incorporated by reference as though fully set forth.
387. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
388. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
389. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION OF SHAKIRA POLONIO

Negligent Hiring, Retention and Supervision Under
New York State Law

390. The above paragraphs are here incorporated by reference as though fully set forth.
391. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
392. Defendant City breached that duty of care.

393. Defendant City placed defendants in a position where they could inflict foreseeable harm.
394. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
395. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
396. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
397. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION OF SHAKIRA POLONIO

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Individual Defendants

398. The above paragraphs are here incorporated by reference as though fully set forth.
399. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
400. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
401. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.

402. Defendant City, it's policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with defendant City's employees.
403. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to his display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
404. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
405. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- s) To be free from excessive force;
 - t) Not to have summary punishment imposed upon her; and
 - u) To receive equal protection under the law.
406. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

JURY DEMAND

407. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff CRYSTAL CASTILLO respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- h) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

WHEREFORE, Plaintiff GENETRIX ISAMBERT respectfully requests judgment against Defendants, jointly and severally, as follows:

- i) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- u) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- x) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

WHEREFORE, Plaintiff ANA LOPEZ respectfully requests judgment against Defendants, jointly and severally, as follows:

- y) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- z) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- aa) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- bb) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- cc) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- dd) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- ee) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ff) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- gg) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- hh) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ii) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- jj) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- kk) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ll) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- mm) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- nn) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

WHEREFORE, Plaintiff ERICA POLONIO respectfully requests judgment against Defendants, jointly and severally, as follows:

- oo) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- pp) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- qq) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- rr) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ss) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- tt) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- uu) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- vv) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ww) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- xx) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- yy) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- zz) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- aaa) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- bbb) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ccc) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- ddd) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

WHEREFORE, Plaintiff SHAKIRA POLONIO respectfully requests judgment against Defendants, jointly and severally, as follows:

- eee) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- fff) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- ggg) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- hhh) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- iii) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- jjj) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- kkk) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- lll) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

DATED: New York, New York
August 27, 2021



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
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T- (212) 321-0025
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ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
August 27, 2021



DEVERNA LAW
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Index No. :

SUPREME COURT OF THE STATE OF NE W YORK
COUNTY OF BRONX

CRYSTAL CASTILLO; GENETRIX ISAMBERT; ANA LOPEZ; ERICA POLONIO;
SHAKIRA POLONIO,

Plaintiffs.

-against-

CITY OF NEW YORK; HAMZE ELREDA; JOHN AND JANE DOE ONE THROUGH
TWENTY,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK
Attorney(s)for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for